

brake line; Defendants made all repairs to the vehicle and thereafter properly secured the driver's side front brake line to the appropriate bracket such that the brake line was not in contact with the tire; Defendants did not remove, detach, or manipulate the brake line other than to secure it into the mounting bracket; before returning the vehicle to Plaintiff, Aquirre test drove the vehicle for three miles, reaching highway speeds of 65 mph, and had no issues with the brakes; while Plaintiff claims the vehicle was leaking brake fluid when she picked it up from Tire Choice, she testified in deposition that she did not observe any leaking fluid; Plaintiff made at least one stop at a traffic light after picking up her vehicle before reaching highway speeds, and the brakes were working properly at that time; and Plaintiff is unaware of any Tire Choice employee having knowledge of any problem with her brakes when she picked up the vehicle. (UMF ## 1-6, 12, 14, 16-17.) This evidence is sufficient to show that Plaintiff cannot establish causation for the incident.

The burden then shifts to Plaintiff to establish a triable issue of material fact regarding causation. “[P]roof of causation cannot be based on mere speculation, conjecture and inferences drawn from other inferences to reach a conclusion unsupported by any real evidence.” (*Padilla v. Rodas* (2008) 160 Cal.App.4th 742, 752; see also, *Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205-06 (*quoting* Prosser & Keaton, Torts (5th Ed. 1984), § 41) [“The plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant”].)

As Plaintiff did not oppose the motion, she fails to present the necessary evidence to create a triable issue of material fact as to causation. Accordingly, the motion is granted.

The motion for summary judgment is Granted. The Court enters summary judgment in favor of Defendants.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500474	ANDERSON VS BURKS	MOTION FOR LEAVE TO FILE CROSS COMPLAINT

Tentative Ruling:

This motion is unopposed. Accordingly, the motion for leave to file a cross complaint is granted. Moving party is to give notice of ruling within 10 days of this order. Moving party is ordered to file its cross complaint within 10 days of this order.